



POLICE DEPARTMENT

July 18, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202401226 (Incident Date: February 3, 2024) regarding Police Officer Key Matiascastillo, Tax No. 968620 (PODS No. C-034268)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202401226, pertaining to Police Officer Key Matiascastillo. Having analyzed the facts and circumstances regarding this matter, the Police Commissioner has determined that to pursue Charges and Specifications against said officer would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner agrees with the substantiated allegations, however, disagrees that Charges and Specifications are the appropriate form of discipline. Police Officer Matiascastillo has been a member of the New York City Police Department for over five (5) years, has no formal disciplinary history, and no prior substantiated CCRB allegations.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, intends to impose to direct the issuance of a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days and formalized training for the misconduct.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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ERIC L. ADAMS
MAYOR

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Dr. MOHAMMAD KHALID
INTERIM CHAIR

July 22, 2025

The Honorable Jessica Tisch
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB Case No. 202401226 (Incident Date: February 03, 2024) regarding Police Officer
Key Matias Castillo, Tax No. 968620 (PODS No. C-034268)

Commissioner Tisch:

I am writing in response to the letter from Deputy Chief Michael P. Baker, dated July 18, 2025 (hereinafter the “Letter”), informing the Civilian Complaint Review Board (hereinafter the “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and issue a Schedule “A” Command Discipline and impose formalized training along with the forfeiture of three (3) vacation days against Police Officer Key Matias Castillo (hereinafter “Officer Matias Castillo”) for Specifications (1) through Four (4).

Pursuant to Paragraph 2 of the Memorandum of Understanding between the CCRB and the New York City Police Department (hereinafter the “NYPD”), dated April 2, 2012, I am responding to Deputy Chief Baker’s notification.

Deputy Chief Baker’s Letter agrees with the CCRB’s substantiation of four (4) allegations against Officer Matias Castillo. Nevertheless, citing Officer Matias Castillo’s lack of disciplinary history and lack of substantiated CCRB allegations, the Letter concludes that the matter would be best resolved with Command Discipline rather than Charges and Specifications. The CCRB respectfully disagrees with this assessment.

Deputy Chief Baker’s Letter does not dispute that Officer Matias Castillo wore two patches on his NYPD uniform that did not merely flout the Patrol Guide’s prohibition against unauthorized uniform modifications, but whose very nature constituted offensive and discourteous speech. Officer Matias Castillo himself admitted those patches were not appropriate.

Specifically, in this melting pot beloved city of ours, Officer Matias Castillo wore a patch on his NYPD uniform of a symbol that has been appropriated by Neo-Nazis and other white supremacist hate groups—the Punisher skull logo. The CRRB determined that given the racial animus, fear and the threat of vigilante aggression the Punisher skull symbol invokes, Officer Matias Castillo wearing a Punisher skull patch on his NYPD uniform was both offensive and discourteous. Specifications One (1) and (2).

Moreover, Officer Matias Castillo further underscored his disregard for the Patrol Guide’s prohibition on engaging in conduct prejudicial to good order, efficiency, or discipline of the NYPD by wearing a second unauthorized patch on his NYPD uniform—a patch that announced, “zero fucks given.” Specifications Three (3). Lastly, Matias Castillo abused his authority when he failed to activate his body-worn camera prior to initiating contact with an individual pursuant to police action. Specification Four (4).

The CCRB submits that, notwithstanding Officer Matias Castillo’s lack of disciplinary history or substantiated CCRB allegations, given the very public nature of Officer Matias Castillo rebuke of NYPD’s own mission and values that officers operate with courtesy, professionalism, civility and respect, Charges and Specifications are the most appropriate form of public accountability and civic transparency.

Based upon the foregoing, it is respectfully requested that the NYPD serves Charges and Specifications upon Officer Matias Castillo.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin

General Counsel

NYC Civilian Complaint Review Board



POLICE DEPARTMENT

July 24, 2025

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202401226 (Incident Date: February 3, 2024) regarding Police Officer Key Matiascastillo, Tax No. 968620 (PODS No. C-034268)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated July 22, 2025, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Key Matiascastillo, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Matiascastillo for the reasons expressed in my July 18, 2025 letter.

Therefore, the Police Commissioner affirms her decision to exercise Provision Two of the Memorandum of Understanding and now directs the issuance of a Schedule "A" Command Discipline with the forfeiture of three (3) vacation days and formalized training for the substantiated allegations.

Sincerely,

Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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